

Step Two - Balance of Interests of Parties and Public

The second step involves consideration of the private interest factors and the public interest factors. The private interest factors include “the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses.” (*Ford Motor Co. v. Insurance Co. of North America* (1995) 35 Cal.App.4th 604, 610.) “The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.” (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751.)

A. Private Factors (access to proof, cost of obtaining witnesses, availability of compulsory process)

The court finds that the private factors are neutral. Defendant Red Tail is alleged to be a business with a principal place of business in Irvine, California. Plaintiff is also currently a resident of California. Defendants do not dispute Red Tail’s principal place of business. It is unclear the state of which Defendant Lindsay Harvey is a resident. Further, Plaintiff offered evidence of an email relating to the towing at issue, which appears to give the contact information/address of Lindsay Harvey at “RED TAIL RESIDENTIAL, 2082 Michelson Drive, Irvine, CA 9612.” (See Chaganti Decl., Exh. 1 at signature block). Defendants do not proffer evidence that the access to proof, cost of obtaining witnesses, or the compulsory process for attendance of unwilling witnesses would be more difficult or burdensome in California.

B. Public Factors

The court also finds that the public factors are neutral. Defendant Red Tail’s principal place of business is in California. Venue is proper in the county where the principal place of business of a corporation is situated. (*Hale v. Bohannon* (1952) 38 Cal.2d 458, 469). A plaintiff's

		choice of venue is regarded as presumptively correct, and a corporate defendant has the burden of negating the propriety of venue as laid on all possible alternative grounds. (<i>Tokuzo Shida v. Japan Food Corp.</i> (1960) 185 Cal.App.2d 443, 447-448.) Here, Defendants do not proffer admissible showing that a lease was entered into in Missouri and/or that the parties agreed to apply Missouri law. California has a public interest in adjudicating liability of California corporations in California. Based on the current state of the admissible evidence before the court, Defendants have not sufficiently shown that the private and public factors weigh in favor of a forum outside of California. The motion is therefore DENIED without prejudice. Moving Defendants to give notice.
11	Jackson vs. City of Laguna Niguel, California	<u>Motion for Attorneys' Fees</u> The court DENIES Petitioner MICHELLE R. JACKSON's motion for an award of attorney's fees in the amount of \$428,518.00 against Respondent CITY OF LAGUNA NIGUEL, CALIFORNIA (the "City"). Evidentiary Objections: The City's objection number 7 to the declaration of Michelle Jackson and objection number 5 to the declaration of Carlos Perez are SUSTAINED; the remainder of the City's evidentiary objections are OVERRULED. Petitioner's objection number 2 to the declaration of Richard Egger is SUSTAINED; the remainder of Petitioner's evidentiary objections are OVERRULED. RJN: The City's request for judicial notice is GRANTED as to Exhibits 1 and 3 (Evid. Code § 452(d) and DENIED as to Exhibit 2, which is not relevant to the court's analysis. (<i>Sweeney v. California Regional Water Quality Control Board.</i> (2021) 61 Cal.App.5th 1093, 1118, fn. 5 ["Matters